

LAW & MOTION CALENDAR
TENTATIVE RULINGS

August 14, 2026

09:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Danial vs. PNM Enterprises 2024-01410966	Plaintiff's Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to October 9, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 30, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions, and additions must be submitted as well. <i>As to the Settlement:</i> 1. Please provide 60 days, rather than 45, for opt-outs, objections, and workweek disputes. 2. How large a sample of time and pay records did Defendant turn over (e.g., 10%)?

		3. Did counsel interview anyone other than Plaintiff to value the non-record claims? 4. Counsel states that an expert was retained to value the case. Whom? Please provide a CV. 5. In response to the meal break claim, Defendant would argue “that the claim lacks merit and that the violations were primarily unrecorded and off-the-clock.” (Yslas Decl. ¶ 13.) Why would Defendant contend the claim lacks merit? As to Defendant’s contention that violations were primarily unrecorded, don’t the time and pay records create a presumption that 38.3% of break-eligible shifts had meal break violations? 6. Defendant’s policies required employees to keep their walkie-talkies on their person and turned on at all times, even during rest breaks. Is there any case law on whether such a requirement means rest breaks are on-duty breaks? 7. Does the UCL claim have independent value, or does it simply extend the limitations period? 8. The class and PAGA releases cover not only claims that were pled or could have been pled based on the facts alleged in the complaint and the LWDA letter, but also facts “ascertained in the course of the Action.” Please delete this language. Almost anything could have been “ascertained in the course of the Action.” 9. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 10. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 11. Because he has submitted a declaration in support of his requested enhancement at preliminary approval, Plaintiff need not submit one at final approval.
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		12. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout. As to the Notice: 1. At page 4, please delete the descriptions of the mediator as “experienced, neutral” and the settlement agreement as “lengthy.” Because the notice is Court-ordered, these descriptions could suggest the Court’s official endorsement. 2. Does notice need to be given in any languages other than English and Spanish? 3. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 4. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
2	Brand vs. Pacific City Operations, LLC 2024-01415965	Plaintiff's Motion for Approval of Paga Settlement The motion for approval of PAGA settlement is CONTINUED to October 9, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 30, 2026. If a revised settlement agreement and/or proposed notice is submitted, a redline version showing all changes, deletions, and additions must be submitted as well. In addition, Plaintiff must provide proof of service of any revised settlement agreement and supplemental papers and a copy of this ruling on the LWDA. The Court’s prior minute order expressed concern that Plaintiff appeared to have agreed to a de minimis PAGA settlement in exchange for an outsized individual settlement for claims arising from a single month of work. To that end, the Court asked for a summary of the never-pled individual claims arising from discrimination and wrongful termination. The Court also asked for specific details about the predicate Labor Code violations giving rise to the PAGA claim. The supplemental briefing adequately addresses the rest break predicate, but the briefing is inadequate on other points. Rather than providing <i>any</i> details about the discrimination claim, counsel